

#22); and (2) \$21,642.09 in corrective attorney's fees and costs paid within the Underlying Case after Garcia's withdrawal (AMF #23). (Seavey Decl. ¶¶ 19-20; Gallivan Decl. ¶¶ 2-6.)

Here, the \$44,441.41 fees paid to Garcia for his services are not tort damages. Fees paid to a second attorney to correct errors committed by the first attorney are recoverable only if a plaintiff can prove that they "paid more than the value of the legal services he received." (*Orrick Herrington & Sutcliffe LLP v. Superior Court* (2003) 107 Cal.App.4th 1052, 1060.) "If he can prove he did not receive value for his payment, he may recover damages 'to the extent' the fees exceed the value of the services received." (*Id.*)

Here, attorney Gallivan (the substitute counsel) identifies *some* corrective work performed after his substitution into the case. (see, Gallivan Decl. ¶ 3.) This creates a triable issue as to whether *some* compensable harm exists. As such, Defendants have not negated all compensable harm as a matter of law.

Fraud

As to the fraud claim, Defendants did not eliminate every fraud theory. Plaintiffs produce some e-mail evidence showing that Garcia allegedly told Seavey that the Underlying Case was "a derivative lawsuit" and that board approval was unnecessary. (Gallivan Decl., ¶ 15.) However, the record also shows that Defendants later admitted in a verified response that the Underlying Case was *not* derivative. (Plaintiff's Additional Material Fact ("AMF"), p. 25, #18.) As such, the evidence here presents triable issues concerning a fraud/misrepresentation theory. Plaintiffs also raise a fraud theory in the execution of the fee agreement. However, in any event, Defendants seek summary judgment on the entire action and because triable issues remain as to at least the settlement-related fraud theory, Defendants have not shown entitlement to summary judgment on the entire action.

Money Had and Received

Defendants argue that this claim cannot support return of all fees because they performed legal services and consideration did not totally fail, citing *Brown v. Grimes* (2011) 192 Cal.App.4th 265, 282. Plaintiffs respond that the \$7,500 initial retainer required by the fee agreement was funded by a "personal loan" from Seavey and Norris to the Association. (Seavey Decl., ¶ 6.) Plaintiffs also rely on *Fair v. Bakhtiari* (2011) 195 Cal.App.4th 1135, 1152 to argue that intentional fiduciary misconduct may support a forfeiture of that compensation. Defendants argue that Seavey and Norris should go after the Association in case of non-recovery of the personal loan payment.

Here, the court need not reach the parties' argument and decide whether the 5th cause of action independently survives, as Defendants did *not* notice alternative summary adjudication, and that the other causes of action present triable issues. DENIED

4.

CASE #	CASE NAME	HEARING NAME
CVPS2500325	TORRES ALDAMA VS INDIAN SPRINGS MOBILEHOME PARK HOMEOWNERS' ASSOCIATION	MOTION FOR PROTECTIVE ORDER BY LINDA HARROD, BESSIRE & CASENHISER, INC.

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is a breach of contract action. On January 10, 2025, Plaintiff Francisco Javier Torres Aldama ("Plaintiff") filed a Complaint against Defendants Indian Springs Mobilehome Park Homeowners' Association (the "HOA"), Bessire & Casenhiser, Inc. ("B&C"), and Linda Harrod ("Harrod") (together "Defendants") for: (1) breach of contract; (2) breach of oral contract; (3) intentional misrepresentations; and (4) intentional interference with contractual relations.

On April 2, 2026, Plaintiff filed the operative Third Amended Complaint ("TAC") asserting causes of action for: (1) breach of contract; (2) breach of oral contract; (3) quantum meruit; (4) unjust enrichment; and (5) intentional misrepresentation. In the TAC, Plaintiff alleges that he provided landscaping services to the HOA, working under an annual contract primarily negotiated through Harrod, who managed the property on behalf of B&C. In 2023, Harrod advised Plaintiff that he would be awarded a substantial new landscaping project, which resulted in him incurring over \$100,000 in expenses to support this new work. However, no project materialized, and he simply got a one-year contract to continue the same work he had been doing. In April 2024, Harrod solicited a competing bid from another landscaping business and shortly thereafter, she issued Plaintiff a thirty-day termination letter. Plaintiff offered to match the other business' contract price, but Harrod refused.

On June 30, 2026, Plaintiff served Harrod with a notice of her deposition to take place in person on July 20, 2026. Harrod asked to reschedule the deposition and also requested a remote deposition. On July 14, 2026, Plaintiff served a second amended notice of deposition, noticing Harrod for an in-person deposition on August 12, 2026.

Harrod now moves for a protective order allowing a remote deposition with conditions on the grounds that there is good cause for such an order because she has medical conditions, including a rapid/irregular heartbeat when she is under stress; persistent back and hip pain; and an urgent need to use the bathroom under stress, which make it difficult for her to understand and accurately answer questions. She argues that her deposition experience in a prior case, *Elam v. Bessire & Casenhiser*, CVPS2202195 (the "Elam Action") corroborates her concerns, in that when she was deposed there, she experienced symptoms, paramedics were called, and she received hospital care.

In opposition, Plaintiff argues that Harrod's arguments in this motion echo her arguments in seeking a remote deposition in the Elam Action, but without medical records or doctor testimony. He argues that even with medical evidence, the court in the Elam Action denied Harrod's request; accommodations were given for an in-person deposition (the same accommodations Plaintiff offered here); and her deposition went forward without incident. He further argues that Harrod is a percipient witness and a defendant; California's liberal discovery standard favors in person depositions, which is what Plaintiff noticed; and Harrod fails to show good cause for the relief sought. Finally, Plaintiff argues that Harrod did not adequately meet and confer before filing this motion.

In reply, Harrod argues that the declaration she submitted with her motion shows she met and conferred before filing the motion; the Elam filings do not prove that Harrod does not need the accommodations sought; both sides recognize that some accommodations are necessary, it is just a matter of what; and there is not in-person deposition requirement.

Request for Judicial Notice (RJN)

Plaintiff asks the Court to take judicial notice of certain filings from the Elam Action, and Harrod does not oppose the request. GRANTED (Evid. Code § 452(d).)

Motion to Compel In Person Deposition

“Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order.” (C.C.P. § 2025.420(a).) “The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or any other affected natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (*Id.* at § 2025.420(b).) The moving party has the burden of establishing good cause for a protective order. (*Nativi v. Deutsche Bank National Trust Co.*) (2014) 223Cal.App.4th 261, 318; *Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.) “[B]road allegations of harm, unsubstantiated by specific examples or articulated reasoning” are insufficient. (*Nativi, supra*, 223Cal.App.4th at 318 [internal quotation marks and quotation omitted].) “The concept of good cause . . . calls for a factual exposition of a reasonable ground for the sought order.” (*Tanguilig v. Valdez* (2019) 36 Cal.App.5th 514, 528.)

The issuance and formulation of protective orders are to a large extent discretionary, and ruling on motions for protective orders will not be disturbed absent an abuse of discretion. (*Nativi, supra*, 223Cal.App.4th at 316-317.) The trial court considering a protective order is in the best position to weigh fairly the competing needs and interests of parties affected by discovery. (*Id.* at 317.)

Here, Plaintiff noticed Harrod’s deposition to take place in person, while Harrod seeks a remote deposition due to her health conditions.

Pursuant to C.C.P. § 2025.250, subdivision (a), the deposition of a natural person “shall be taken at a place that is, at the option of the party giving notice of the deposition, either within 75 miles of the deponent’s residence, or within the county where the action is pending and within 150 miles of the deponent’s residence.” (*Ibid.* [emphasis added].) Thus, the statute grants the noticing party, here Plaintiff, the right to designate an in-person deposition location within the permissible geographic boundaries. There is no dispute that the location designated by Plaintiff is within 75 miles of Harrod’s residence, with Plaintiff stating (and Harrod not disputing) that it is within 20 miles. Thus, Harrod’s in person deposition was properly noticed.

C.C.P. § 2025.310 permits a deponent or deposing party to elect remote means for certain aspects of a deposition; however, it does not require such remote attendance. The permissive language of the statutes makes clear that while remote options exist, they do not override Plaintiff’s statutory right to insist upon an in-person deposition, particularly where credibility assessments and thorough examination are critical. Furthermore, California Rules of Court (“CRC”), rule 3.1010(c) provides that “[a] deponent must appear and participate in a deposition as required by statute or as agreed to by the parties.”

In this case, Harrod has not been excused from appearing in person, nor is there any stipulation or order authorizing a remote deposition in lieu of an in-person appearance. Additionally, it has been noted that “one operating assumption of our system of justice has long been that the opportunity to observe witnesses upon the stand and the manner in which they gave their testimony . . . in no small degree aid[s] in the determination of the truth and correctness of testimony.” (*Rycz v. Superior Court* (2022) 81 Cal.App.5th 824, 841.) Accordingly, unless she can establish that ordering a remote deposition will prevent her from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense [C.C.P. § 2025.420(b)], she must comply with Plaintiff’s notice, which requires an in-person deposition.

Harrod presents evidence that she has various health conditions, including an irregular heartbeat, a heart artery condition, osteoporosis, fibromyalgia, arthritis, a ruptured disc in my lower back, a condition that inflames my colon, and performance anxiety; when she is under stress, she experiences an irregular heartbeat and shortness of breath and has to stop doing whatever she

is doing until it passes; she has persistent hip and back pain and needs to move around every 30 minutes; she tires easily and cannot drive for long periods; she experiences abdominal pain and has urgent bathroom needs, particularly when she is under stress; when she is watched and questioned, she experiences a racing heart and changes in breathing that affect her ability to understand and answer questions accurately; and her doctors have warned her to avoid stress. (Decl. of Linda Harrod ["Harrod Decl."] at ¶¶ 4, 8-14.) Based on this, she asks the Court to issue a protective order that her deposition be taken remotely from a private location with the following conditions: she be visible on camera at all times that she is on the record; everyone present at her location is identified on the record; she cannot communicate with anyone or review any documents or materials other than a marked exhibit while a question is pending; she will be questioned for 30 minutes, followed by a 20 minute break, with the breaks not being counted against the time limit set forth in C.C.P. § 2025.290; and she will be given additional breaks if necessary. (See, Notice of Motion.)

In response, Plaintiff argues that it noticed, and is entitled to take Harrod's deposition in person, and agrees to provide the following accommodations (the same that were provided in the Elam Action): the attendance of a registered nurse to keep Harrod's vital signs, with Harrod paying for this cost; 10 minute breaks after every 30 minutes of testimony; and suspending the deposition for 30 minutes if Harrod experiences shortness of breath, faintness, or high or low blood pressure, continuing only once the symptoms decrease. (Decl. of Karen S. Spicker ["Spicker Decl."] at ¶¶ 3, 5, 12-15, Exs. 1-2.)

Harrod presents no evidence showing that her health conditions and related symptoms cannot be adequately addressed by the accommodations proposed by Plaintiff. The accommodations offered by Plaintiff, at their own cost, are not small measures, but in this case warranted and dispositive. Having a registered nurse attend the deposition and keep track of Harrod's vital signs, with the understanding that if she experiences shortness of breath or high/low blood pressure the deposition will be temporarily suspended until the symptoms are reduced, addresses Harrod's concerns about the stress of questioning causing a racing heart and/or changes in breathing [Harrod Decl. at ¶¶ 8, 12-13]. A 10-minute break after every 30 minutes of testimony should be sufficient to allow Plaintiff to move around and reduce any pain from sitting while testifying for 30 minutes [Harrod Decl. at ¶ 9], without causing too much disruption and delay in the deposition. Harrod's need for a bathroom and concerns about "being watched and questioned" [Harrod Decl. at ¶¶ 11-12] will be the same whether she is in-person or remote, so they do not provide sufficient good cause for a remote deposition. Additionally, as the deposition location is 20 minutes from her home, the fact that Harrod "tires easily" and cannot drive for long periods" [Harrod Decl. at ¶ 10] also do not present good cause for a remote deposition.

Accordingly, the motion is denied based on the express terms of the accommodations that will be provided and adherence to all of them shall be strict.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503717	ARIAS VS MURO	MOTION TO COMPEL COMPLIANCE AND FURTHER RESPONSES TO REQUESTS FOR PRODUCTION TO DEFENDANT MURO, SETS ONE AND TWO, AND REQUEST FOR SANCTIONS BY OSCAR ARIAS

Tentative Ruling: Hearing continued to December 3rd 2026 at 8:30 a.m. pending current stay as to individual Defendant Emilio Muro that went into effect on 8/21/16.